

NOVAHR

HR and Payroll, Built for South African Business

Mutual Non-Disclosure Agreement

Version v1.0 | Effective 10 July 2026

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Mutual Non-Disclosure Agreement

Version: 1.0 (Draft, pending legal review)

Use for: investors, partners, contractors, and any two-way exchange of confidential information. For prospects evaluating NovaHR, use the one-way NDA instead.

This Mutual Non-Disclosure Agreement ("Agreement") is entered into on [DATE] between: [NOVA BUSINESS OS (PTY) LTD], registration number [●], of [address] ("NovaHR"); and [COUNTERPARTY LEGAL NAME], registration number [●], of [address] ("Counterparty"), (each a "Party"; the Party disclosing information is the "Discloser" and the Party receiving it is the "Recipient").

1. Purpose

The Parties wish to exchange confidential information to evaluate and pursue a potential business relationship concerning [describe: e.g. investment in, partnership with, or services to NovaHR] (the "Purpose").

2. Confidential Information

2.1 "Confidential Information" means all non-public information disclosed by a Discloser to a Recipient, in any form, that is marked confidential or that a reasonable person would understand to be confidential, including: business plans, financial information and projections, customer and supplier lists, pricing, product roadmaps, software, source code, system architecture, security information, and personal information.

2.2 Confidential Information excludes information that: (a) is or becomes public through no fault of the Recipient; (b) was lawfully known to the Recipient before disclosure; (c) is lawfully received from a third party without restriction; (d) is independently developed without use of the Discloser's Confidential Information.

3. Obligations

The Recipient will:

(a) use Confidential Information solely for the Purpose; (b) protect it with at least the degree of care used for its own confidential information, and no less than reasonable care; (c) disclose it only to its directors, employees, and professional advisers who need it for the Purpose and are bound by confidentiality obligations no less strict than this Agreement, remaining liable for their compliance; (d) not reverse engineer, decompile, or derive source code from any disclosed software; (e) comply with POPIA in respect of any personal information disclosed.

4. Compelled Disclosure

If the Recipient is required by law, regulation, or court order to disclose Confidential Information, it may do so to the minimum extent required, provided it gives the Discloser prompt written notice (where lawful) to allow protective measures.

5. No Licence, No Obligation

5.1 No licence or ownership right is granted by disclosure. All Confidential Information remains the Discloser's property.

5.2 Nothing obliges either Party to disclose information or enter any further agreement. No warranty is given as to accuracy or completeness.

6. Return and Destruction

On written request or termination of discussions, the Recipient will return or destroy all Confidential Information and certify destruction, except one archival copy required for legal compliance and automatic backups, which remain subject to this Agreement.

7. Term

This Agreement takes effect on the date above and continues for 3 years. Obligations regarding trade secrets and personal information survive indefinitely.

8. Remedies

The Parties agree that breach may cause irreparable harm for which damages are inadequate, and that the Discloser may seek an interdict or specific performance in addition to any other remedy.

9. General

9.1 Governed by the laws of the Republic of South Africa; the Parties consent to the jurisdiction of the High Court of South Africa, [●] Division.

9.2 This Agreement is the entire agreement regarding confidentiality for the Purpose; amendments must be written and signed; it may be signed electronically under ECTA; neither Party may assign without consent.

NovaHR		Counterparty
Signature	_____	_____
Name		
Title		
Date		